



Companies House

SH02

Notice of consolidation, sub-division, redemption of shares or re-conversion of stock into shares

☒ **What this form is for**
You may use this form to give
notice of consolidation,
sub-division, redemption of
shares or re-conversion of stock
into shares.

☒ **What this form is NOT for**
You cannot use this form to give
notice of a conversion of shares
into stock.

For further information, please
refer to our guidance at
www.gov.uk/companieshouse

1 Company details

Company number 0 9 9 2 8 3 4 5

Company name in full ALPHA FMC MIDCO LIMITED

→ **Filling in this form**
Please complete in typescript or in
bold black capitals.

All fields are mandatory unless
specified or indicated by *

2 Date of resolution

Date of resolution d 1 d 1 m 1 m 2 0 2 3

3 Consolidation

Please show the amendments to each class of share.

Class of shares (E.g. Ordinary/Preference etc.)	Previous share structure		New share structure	
	Number of issued shares	Nominal value of each share	Number of issued shares	Nominal value of each share

4 Sub-division

Please show the amendments to each class of share.

Class of shares (E.g. Ordinary/Preference etc.)	Previous share structure		New share structure	
	Number of issued shares	Nominal value of each share	Number of issued shares	Nominal value of each share

5 Redemption

Please show the class number and nominal value of shares that have been
redeemed. Only redeemable shares can be redeemed.

Class of shares (E.g. Ordinary/Preference etc.)	Number of issued shares	Nominal value of each share
PREFERENCE	1,322,044	£0.000005

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Re-conversion

Please show the class number and nominal value of shares following re-conversion from stock.

New share structure

Value of stock	Class of shares (E.g. Ordinary/Preference etc.)	Number of issued shares	Nominal value of each share	

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Statement of capital

Complete the table(s) below to show the issued share capital. It should reflect the company's issued capital following the changes made in this form.

Complete a separate table for each currency (if appropriate). For example, add pound sterling in 'Currency table A' and Euros in 'Currency table B'.

Continuation page

Use a Statement of Capital continuation page if necessary.

Currency Complete a separate table for each currency	Class of shares E.g. Ordinary/Preference etc.	Number of shares	Aggregate nominal value (£, €, \$, etc) Number of shares issued multiplied by nominal value	Total aggregate amount unpaid, if any (£, €, \$, etc) Including both the nominal value and any share premium
Currency table A				
GBP	A ORDINARY	15,960	£15,960.00	
GBP	B ORDINARY	4,040	£4,040.00	
GBP	C ORDINARY	1,400,000	£7.00	
Totals		1,420,000	£20,007.00	

Currency table B				
Totals				

Currency table C				
Totals				

Total issued share capital table				
Complete this table to show your total issued share capital. Add the totals from all currency tables, including continuation pages.		Total number of shares	Total aggregate nominal value ①	Total aggregate amount unpaid ① ②
Grand total		1,420,000	£20,007.00	

① Show different currencies separately. For example: £100 + €100 + \$10

② Total aggregate amount unpaid

Enter 0 or 'nil' if the shares are fully paid. We'll assume the shares are fully paid if you leave this blank.

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Statement of capital (prescribed particulars of rights attached to shares)^①

Please give the prescribed particulars of rights attached to shares for each class of share shown in the share capital tables in **Section 7**.

① Prescribed particulars of rights attached to shares

The particulars are:

- a. particulars of any voting rights, including rights that arise only in certain circumstances;
- b. particulars of any rights, as respects dividends, to participate in a distribution;
- c. particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and
- d. whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder.

A separate table must be used for each class of share.

Please use a Statement of capital continuation page if necessary.

Class of share

SEE CONTINUATION PAGE

Prescribed particulars
①

Class of share

Prescribed particulars
①

Class of share

Prescribed particulars
①

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Signature

I am signing this form on behalf of the company.

Signature

Signature

X



X

This form may be signed by:

Director^②, Secretary, Person authorised^③, Administrator, Administrative Receiver, Receiver, Receiver manager, CIC manager.

② Societas Europaea

If the form is being filed on behalf of a Societas Europaea (SE) please delete 'director' and insert details of which organ of the SE the person signing has membership.

③ Person authorised

Under either section 270 or 274 of the Companies Act 2006.

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Presenter information

You do not have to give any contact information, but if you do it will help Companies House if there is a query on the form. The contact information you give will be visible to searchers of the public record.

Contact name	RACHEL FAULCONBRIDGE
Company name	ADDLESHAW GODDARD LLP
Address	3 SOVEREIGN SQUARE
Post town	LEEDS
County/Region	
Postcode	L S I 4 E R
Country	UNITED KINGDOM
DX	12004 Leeds
Telephone	



Checklist

We may return forms completed incorrectly or with information missing.

Please make sure you have remembered the following:

- ☐ The company name and number match the information held on the public Register.
- ☐ You have entered the date of resolution in Section 2.
- ☐ Where applicable, you have completed Section 3, 4, 5 or 6.
- ☐ You have completed the statement of capital.
- ☐ You have signed the form.



Important information

Please note that all information on this form will appear on the public record.



Where to send

You may return this form to any Companies House address, however for expediency we advise you to return it to the appropriate address below:

For companies registered in England and Wales:
The Registrar of Companies, Companies House,
Crown Way, Cardiff, Wales, CF14 3UZ.
DX 33050 Cardiff.

For companies registered in Scotland:
The Registrar of Companies, Companies House,
Fourth floor, Edinburgh Quay 2,
139 Fountainbridge, Edinburgh, Scotland, EH3 9FF.
DX ED235 Edinburgh 1

For companies registered in Northern Ireland:
The Registrar of Companies, Companies House,
Second Floor, The Linenhall, 32-38 Linenhall Street,
Belfast, Northern Ireland, BT2 8BG.
DX 481 N.R. Belfast 1.



Further information

For further information, please see the guidance notes on the website at www.gov.uk/companieshouse or email enquiries@companieshouse.gov.uk

This form is available in an alternative format. Please visit the forms page on the website at www.gov.uk/companieshouse

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'Statement of capital (prescribed particulars of rights attached to shares)'¹

Class of share	A ORDINARY	
Prescribed particulars	(A) SUBJECT TO ARTICLES 7.3.3 AND 7.3.4 - 7.3.7 OF THE COMPANY'S ARTICLES OF ASSOCIATION, THE A ORDINARY SHARES SHALL ENTITLE ANY HOLDER THEREOF TO RECEIVE NOTICE OF, AND TO ATTEND AND SPEAK, AT ANY GENERAL MEETING AND ON A POLL EACH A ORDINARY SHARE SHALL CARRY ONE VOTE. THE A ORDINARY SHAREHOLDERS (AS A CLASS) SHALL BE ENTITLED TO CAST 100% OF THE VOTING RIGHTS THAT ARE NOT CAPABLE OF BEING CAST BY B ORDINARY SHAREHOLDERS PURSUANT TO PARAGRAPH 7.3.1 (B) OF THE COMPANY'S ARTICLES OF ASSOCIATION AND WHERE THERE IS MORE THAN ONE HOLDER OF A ORDINARY SHARE EACH HOLDER SHALL BE ENTITLED TO CAST THAT PROPORTION OF THE VOTING RIGHTS CAPABLE OF BEING CAST BY THE A ORDINARY SHAREHOLDERS THAT HIS HOLDING OF A ORDINARY SHARES BEARS TO THE TOTAL NUMBER OF A ORDINARY SHARES IN ISSUE (B) SUBJECT TO ARTICLES 7.2.2 AND 7.2.3 OF THE COMPANY'S ARTICLES OF ASSOCIATION (A) THE CAPITAL AND ASSETS OF THE COMPANY ON A WINDING-UP OR OTHER RETURN OF CAPITAL AVAILABLE FOR DISTRIBUTION, AND (B) THE PROCEEDS OF SALE (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION), SHALL BE DISTRIBUTED AMONGST THE ORDINARY SHAREHOLDERS AS FOLLOWS (I) IN PAYING TO EACH HOLDER OF THE B ORDINARY SHARES AN AMOUNT EQUAL TO THE B SHARE SUBSCRIPTION AMOUNT (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) PER B ORDINARY SHARE AND ANY B SHARE DIVIDENDS (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) ACCRUED BUT UNPAID ON THE B ORDINARY SHARES HELD BY THE RELEVANT HOLDER AND, IF THERE IS A SHORTFALL OF PROCEEDS AVAILABLE TO SATISFY SUCH PAYMENTS IN FULL, THE PROCEEDS SHALL BE SHARED AMONG THE HOLDERS OF THE ORDINARY SHARES PRO RATA ACCORDING TO THE NUMBER OF ORDINARY SHARES HELD, (II) FROM THE BALANCE (IF ANY) OF THE PROCEEDS REMAINING AFTER THE PAYMENT OF THOSE SUMS REFERRED TO IN ARTICLES 7.2.1 (I) OF THE COMPANY'S ARTICLES OF ASSOCIATION, IN PAYING THIS TO THE HOLDERS OF THE A ORDINARY SHARES PRO RATA ACCORDING TO THE NUMBER OF A ORDINARY SHARES HELD FOR THE AVOIDANCE OF DOUBT, TO THE EXTENT THERE IS MORE THAN ONE DISTRIBUTION TO BE PAID BY THE COMPANY, THE HOLDERS OF B ORDINARY SHARES SHALL ONLY BE ENTITLED TO A PAYMENT IN ACCORDANCE WITH ARTICLE 7.2.1 (I) ONCE, FOLLOWING WHICH ALL FURTHER DISTRIBUTIONS SHALL BE PAID TO THE HOLDERS OF A ORDINARY SHARES UPON A SALE, THOSE ORDINARY SHARE NOT ACQUIRED BY THE RELEVANT PURCHASER(S) SHALL NOT BE ENTITLED TO ANY ALLOCATION OF PROCEEDS PURSUANT TO ARTICLE 7.2.1 OF THE COMPANY'S ARTICLES OF ASSOCIATION (C) ANY PROFITS WHICH THE DIRECTORS LAWFULLY DETERMINE TO DISTRIBUTE TO THE A ORDINARY SHAREHOLDERS IN RESPECT OF ANY FINANCIAL YEAR, AFTER DECLARATION OF ANY B SHARE DIVIDENDS (AS DEFINED IN THE COMPANY'S ARTICLES), SHALL BE DISTRIBUTED AMONGST THE A ORDINARY SHAREHOLDERS (IN RESPECT OF THEIR A ORDINARY SHARES ONLY) PRO RATA AND PARI PASSU ACCORDING TO THE NUMBER OF A ORDINARY SHARES HELD BY EACH OF THEM (D) THE A ORDINARY SHARES MAY BE ISSUED ON THE TERMS THAT THEY ARE, OR AT THE OPTION OF THE COMPANY OR THE HOLDER ARE LIABLE, TO BE REDEEMED AND THE COMPANY'S BOARD (SUBJECT TO THE TERMS OF THE INVESTMENT AGREEMENT AND THE FINANCE DOCUMENTS (EACH AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) SHALL BE AUTHORISED TO DETERMINE THE TERMS, CONDITIONS AND MANNER OF REDEMPTION OF SUCH SHARES	1 Prescribed particulars of rights attached to shares The particulars are: a. particulars of any voting rights, including rights that arise only in certain circumstances; b. particulars of any rights, as respects dividends, to participate in a distribution; c. particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and d. whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.

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'Statement of capital (prescribed particulars of rights attached to shares)'

Class of share	B ORDINARY
Prescribed particulars	(A) SUBJECT TO ARTICLES 7.3.3 AND 7.3.4-7.3.7 OF THE COMPANY'S ARTICLES OF ASSOCIATION, THE B ORDINARY SHARES SHALL ENTITLE ANY HOLDER THEREOF TO RECEIVE NOTICE OF, AND TO ATTEND AND SPEAK, AT ANY GENERAL MEETING AND ON POLL EACH B ORDINARY SHARE SHALL CARRY ONE VOTE SAVE WHERE A LEAVER OR PERMITTED TRANSFEREE (EACH AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) OF A LEAVER HOLDS ANY INTEREST IN ANY B ORDINARY SHARE. EACH B ORDINARY SHAREHOLDER SHALL BE ENTITLED TO CAST 5% OF THE TOTAL NUMBER OF VOTING RIGHTS CAPABLE OF BEING CAST BY ALL HOLDERS OF ORDINARY SHARES IRRESPECTIVE OF THE NUMBER OF B ORDINARY SHARES HELD BY SUCH B ORDINARY SHAREHOLDER. THE MAXIMUM NUMBER OF B SHAREHOLDERS IS 4. THE ONLY ACTS OR OMISSIONS OF THE COMPANY WHICH WILL REQUIRE A CLASS CONSENT OF THE B ORDINARY SHARES SHALL BE ANY DELETION OR VARIATION OF ARTICLE 7.3.1(B) OF THE COMPANY'S ARTICLES (SAVE THAT NO CLASS CONSENT SHALL BE REQUIRED WHERE SUCH DELETION OR VARIATION RESULTS FROM THE OPERATION OF CLAUSE 18 OF THE INVESTMENT AGREEMENT (AS DEFINED IN THE COMPANY'S ARTICLES) OR UPON ANY INTEREST IN THE B ORDINARY SHARES BEING HELD BY LEAVERS OR PERMITTED TRANSFEREES OF LEAVERS), AN SUCH CLASS CONSENT OF THE B ORDINARY SHARES MAY BE GIVEN BY THE HOLDERS OF A MAJORITY OF THE B ORDINARY SHARES THEN IN ISSUE (EXCLUDING ANY B ORDINARY SHARES IN WHICH ANY INTEREST IS HELD BY AN LEAVER OR ANY PERMITTED TRANSFEREE OF A LEAVER TO WHICH ARTICLE 7.3.5 APPLIES) THE PROVISION OF ARTICLE 7.3.5 OF THE COMPANY'S ARTICLES SHALL APPLY (A) IF, AT ANY TIME WITHOUT INVESTOR DIRECTOR CONSENT (AS DEFINED IN THE COMPANY'S ARTICLES), ANY HOLDER OF B ORDINARY SHARES HAS TRANSFERRED SHARES OR ANY INTEREST THEREIN OR ANY OTHER SECURITY OR INTEREST THEREIN IN ANY MEMBER OF THE GROUP (AS DEFINED IN THE COMPANY'S ARTICLES) IN BREACH OF ANY PROVISION OF THE COMPANY'S ARTICLES, THE TOPCO ARTICLES OR THE NOMINEE AGREEMENT (EACH AS DEFINED IN THE INVESTMENT AGREEMENT (AS DEFINED IN THE COMPANY'S ARTICLES)) OR THE B LOAN NOTE TRANSFER AGREEMENT (AS DEFINED IN THE INVESTMENT AGREEMENT), (B) IF, AT ANY TIME WITHOUT INVESTOR DIRECTOR CONSENT, ANY HOLDER OF B ORDINARY SHARES IS IN MATERIAL BREACH OF ANY PROVISION OF THE COMPANY'S ARTICLES AND/OR THE INVESTMENT AGREEMENT AND/OR THE NOMINEE AGREEMENT AND/OR THE B LOAN NOTE TRANSFER AGREEMENT OR ANY FORMER HOLDER OF B ORDINARY SHARES IS IN MATERIAL BREACH OF ANY PROVISION OF THE INVESTMENT AGREEMENT IF ANY OF THE CIRCUMSTANCES STATED IN ARTICLE 7.3.4 OF THE COMPANY'S ARTICLES HAVE OCCURRED IN RESPECT OF THE B ORDINARY SHEHOLDER REFERRED TO IN ARTICLE 7.3.4 OF THE COMPANY'S ARTICLES (THE "DEFAULTING PERSON"), THEN, UNLESS OTHERWISE AGREED IN WRITING BY THE JHOLDER OF THE MAJORITY OF A ORDINARY SHARES (A) THE SHARES IN WHICH SUCH DEFAULTING PERSON HOLDS ANY LEAGAL OR BENEFICAL INTERST OR TO WHICH HE IS ENTITLED PURSUAN TO THE NOMINEE AGREEMENT OR OTHERWISE, AND (B) ANY SHARES (OR INTERESTS THEREIN) FORMERLY HELD BY SUCH DEFAULTING PERSON WHICH HAVE BEEN TRANSFERRED EITHER IN BREACH OF THE PROVISIONS OF THE COMPANY'S ARTICLES OF ASSOCIATION OR THE NOMINEE AGREEMENT

Prescribed particulars of rights attached to shares

The particulars are:

- particulars of any voting rights, including rights that arise only in certain circumstances;
- particulars of any rights, as respects dividends, to participate in a distribution;
- particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and
- whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder.

A separate table must be used for each class of share.

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'Statement of capital (prescribed particulars of rights attached to shares)'

Class of share	C ORDINARY	
Prescribed particulars	(A) SUBJECT TO ARTICLES 7 3 3 AND 7 3 4 - 7 3 7 OF THE COMPANY'S ARTICLES OF ASSOCIATION, THE A ORDINARY SHARES SHALL ENTITLE ANY HOLDER THEREOF TO RECEIVE NOTICE OF, AND TO ATTEND AND SPEAK, AT ANY GENERAL MEETING AND ON A POLL EACH A ORDINARY SHARE SHALL CARRY ONE VOTE. THE A ORDINARY SHAREHOLDERS (AS A CLASS) SHALL BE ENTITLED TO CAST 100% OF THE VOTING RIGHTS THAT ARE NOT CAPABLE OF BEING CAST BY B ORDINARY SHAREHOLDERS PURSUANT TO PARAGRAPH 7 3 1 (B) OF THE COMPANY'S ARTICLES OF ASSOCIATION AND WHERE THERE IS MORE THAN ONE HOLDER OF A ORDINARY SHARE EACH HOLDER SHALL BE ENTITLED TO CAST THAT PROPORTION OF THE VOTING RIGHTS CAPABLE OF BEING CAST BY THE A ORDINARY SHAREHOLDERS THAT HIS HOLDING OF A ORDINARY SHARES BEARS TO THE TOTAL NUMBER OF A ORDINARY SHARES IN ISSUE (B) SUBJECT TO ARTICLES 7 2 2 AND 7 2 3 OF THE COMPANY'S ARTICLES OF ASSOCIATION (A) THE CAPITAL AND ASSETS OF THE COMPANY ON A WINDING-UP OR OTHER RETURN OF CAPITAL AVAILABLE FOR DISTRIBUTION, AND (B) THE PROCEEDS OF SALE (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION), SHALL BE DISTRIBUTED AMONGST THE ORDINARY SHAREHOLDERS AS FOLLOWS (I) IN PAYING TO EACH HOLDER OF THE B ORDINARY SHARES AN AMOUNT EQUAL TO THE B SHARE SUBSCRIPTION AMOUNT (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) PER B ORDINARY SHARE AND ANY B SHARE DIVIDENDS (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) ACCRUED BUT UNPAID ON THE B ORDINARY SHARES HELD BY THE RELEVANT HOLDER AND, IF THERE IS A SHORTFALL OF PROCEEDS AVAILABLE TO SATISFY SUCH PAYMENTS IN FULL, THE PROCEEDS SHALL BE SHARED AMONG THE HOLDERS OF THE ORDINARY SHARES PRO RATA ACCORDING TO THE NUMBER OF ORDINARY SHARES HELD, (II) FROM THE BALANCE (IF ANY) OF THE PROCEEDS REMAINING AFTER THE PAYMENT OF THOSE SUMS REFERRED TO IN ARTICLES 7 2 1 (I) OF THE COMPANY'S ARTICLES OF ASSOCIATION, IN PAYING THIS TO THE HOLDERS OF THE A ORDINARY SHARES PRO RATA ACCORDING TO THE NUMBER OF A ORDINARY SHARES HELD FOR THE AVOIDANCE OF DOUBT, TO THE EXTENT THERE IS MORE THAN ONE DISTRIBUTION TO BE PAID BY THE COMPANY, THE HOLDERS OF B ORDINARY SHARES SHALL ONLY BE ENTITLED TO A PAYMENT IN ACCORDANCE WITH ARTICLE 7 2 1 (I) ONCE, FOLLOWING WHICH ALL FURTHER DISTRIBUTIONS SHALL BE PAID TO THE HOLDERS OF A ORDINARY SHARES UPON A SALE, THOSE ORDINARY SHARE NOT ACQUIRED BY THE RELEVANT PURCHASER(S) SHALL NOT BE ENTITLED TO ANY ALLOCATION OF PROCEEDS PURSUANT TO ARTICLE 7 2 1 OF THE COMPANY'S ARTICLES OF ASSOCIATION (C) ANY PROFITS WHICH THE DIRECTORS LAWFULLY DETERMINE TO DISTRIBUTE TO THE A ORDINARY SHAREHOLDERS IN RESPECT OF ANY FINANCIAL YEAR, AFTER DECLARATION OF ANY B SHARE DIVIDENDS (AS DEFINED IN THE COMPANY'S ARTICLES), SHALL BE DISTRIBUTED AMONGST THE A ORDINARY SHAREHOLDERS (IN RESPECT OF THEIR A ORDINARY SHARES ONLY) PRO RATA AND PARI PASSU ACCORDING TO THE NUMBER OF A ORDINARY SHARES HELD BY EACH OF THEM (D) THE A ORDINARY SHARES MAY BE ISSUED ON THE TERMS THAT THEY ARE, OR AT THE OPTION OF THE COMPANY OR THE HOLDER ARE LIABLE, TO BE REDEEMED AND THE COMPANY'S BOARD (SUBJECT TO THE TERMS OF THE INVESTMENT AGREEMENT AND THE FINANCE DOCUMENTS (EACH AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) SHALL BE AUTHORISED TO DETERMINE THE TERMS, CONDITIONS AND MANNER OF REDEMPTION OF SUCH SHARES	Prescribed particulars of rights attached to shares The particulars are: - particulars of any voting rights, including rights that arise only in certain circumstances; - particulars of any rights, as respects dividends, to participate in a distribution; - particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and - whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder. A separate table must be used for each class of share.